

Edinburgh Merchant Company Endowments (Amendment) Order Confirmation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. ii

ARRANGEMENT OF SECTIONS

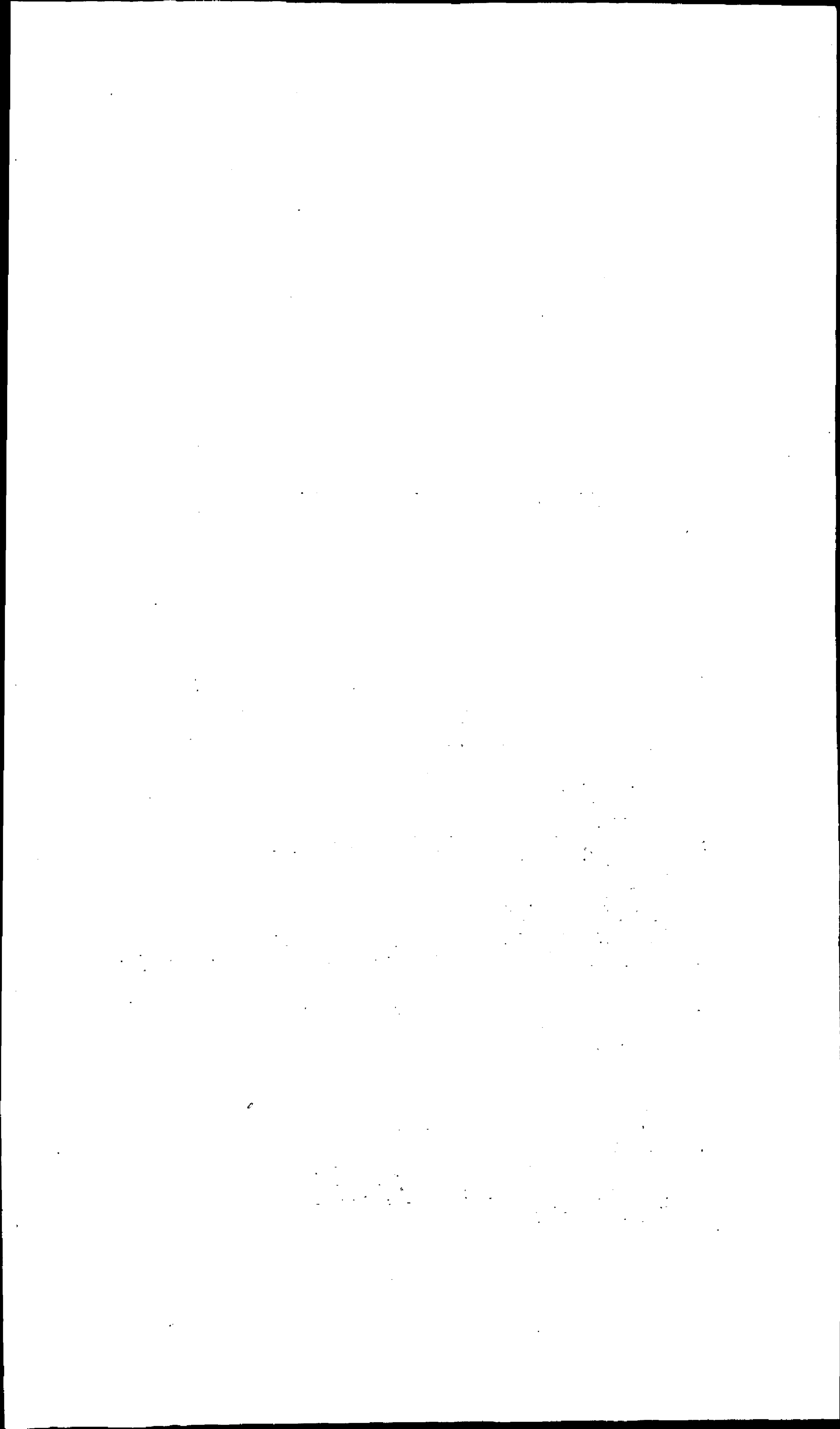
Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

EDINBURGH MERCHANT COMPANY ENDOWMENTS (AMENDMENT)

1. Short and collective titles.
2. Commencement of Order.
3. Interpretation.
4. Repeal.
5. Amalgamation of charitable endowments.
6. Application of income.
7. Classes of beneficiaries.
8. Age of beneficiaries.
9. Minimum amount and tenure of pensions.
10. Power to Charities Board to provide houses etc. for beneficiaries.
11. Power to Charities Board to provide beneficiaries with clothing etc.
12. Election of beneficiaries.
13. Applications for pensions etc.
14. Powers of investment.
15. Power to create reserve fund.
16. Accounts to be kept.
17. Pensions etc. to officers and employees.
18. Saving for town and country planning.
19. Costs of Order.





CHAPTER ii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Edinburgh Merchant Company Endowments (Amendment). [22nd May 1952.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Edinburgh Merchant Company Endowments (Amendment) Order Confirmation Act 1952. Short title.

SCHEDULE

EDINBURGH MERCHANT COMPANY ENDOWMENTS
(AMENDMENT)

Provisional Order to amalgamate James Gillespie's Hospital William Watherston's Endowment and the Gibb and Heriot Mortification administered by the Merchant Company Charities Board and to confer powers on the said Board to administer the said hospital endowment and mortification as one trust or charitable fund to enact provisions as to the qualifications of beneficiaries of the said trust and as to the benefits to be granted to beneficiaries to extend the powers of investment of the said Board and for other purposes.

WHEREAS the charitable endowments known as "James Gillespie's Hospital" "William Watherston's Endowment" and the "Gibb and Heriot Mortification" (hereinafter called "the hospital" "the endowment" and "the mortification" respectively) are administered by the Merchant Company Charities Board (hereinafter called "the Charities Board") established and incorporated by the Edinburgh Merchant Company Endowments Order 1909 (hereinafter called "the Order of 1909"):

And whereas the qualification of pensioners of the hospital and the amount of the pensions are fixed by the Order of 1909:

And whereas the qualification of donees of the endowment and the amount of the gifts are fixed by the Edinburgh Merchant Company Endowments (Amendment) Order 1942 (hereinafter called "the Order of 1942"):

And whereas the qualification of pensioners and the amount of the pensions to be paid out of the free annual income of the mortification are fixed by the mutual trust disposition and settlement of Richard Waterston Gibb and Mrs. Jane Lee Heriot or Gibb his wife dated the fourteenth day of June eighteen hundred and ninety-five and registered in the Books of Council and Session the eighteenth day of April one thousand nine hundred (hereinafter called "the will"):

And whereas the funds of the hospital the endowment and the mortification although administered by the Charities Board are kept and administered as separate and distinct funds:

And whereas it is expedient that the hospital the endowment and the mortification should be administered by the Charities Board as one trust or charitable fund:

And whereas it is expedient that provision should be made to enable the Charities Board to provide pensions out of the said charitable fund of such amounts as may be appropriate having regard to the value of money as prevailing at the time and that the Charities Board should also be empowered to confer benefits on persons qualified in the manner prescribed by this Order in lieu of or in addition to the payment of pensions:

And whereas it is expedient that the provisions contained in this Order with regard to the qualifications of persons for pensions and other benefits should be enacted:

And whereas it is expedient in order to give effect to the purposes aforesaid that certain of the provisions of the Order of 1909 should be amended or repealed and that the Order of 1942 should be repealed and that the will should be modified:

And whereas the powers of the Charities Board relative to the investment of their funds are unduly restricted and it is expedient that the powers of the Charities Board with respect to the investment of such funds should be enlarged and extended as provided in this Order:

And whereas it is expedient that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1.—(1) This Order may be cited as the Edinburgh Merchant Company Endowments (Amendment) Order 1952. Short and collective titles.

(2) This Order shall be construed as one with the Edinburgh Merchant Company Endowments Order 1909 and that Order and this Order may be cited together as the Edinburgh Merchant Company Endowments Orders 1909 and 1952.

2. This Order shall commence and have effect on the date of the passing of the Act confirming the same which date is hereinafter referred to as the commencement of this Order. Commencement of Order.

3. In this Order unless the context otherwise requires words and expressions to which meanings are assigned by the Edinburgh Merchant Company Endowments Order 1909 shall have the same respective meanings. Interpretation.

Provided that the expression “charitable endowments” as defined in the said Order of 1909 shall for the purposes of this Order include the Gibb and Heriot Mortification; and

“beneficiary” means a person elected by the Charities Board to receive a pension or other benefit from the charitable fund;

“charitable fund” means the fund referred to in the section of this Order of which the marginal note is “Amalgamation of charitable endowments” and therein designated “the charitable fund”;

“Gibb and Heriot Mortification” means the mortification known as the “Gibb and Heriot Mortification” administered by the Charities Board in pursuance of the will;

“Order of 1909” means the Edinburgh Merchant Company Endowments Order 1909;

“Order of 1942” means the Edinburgh Merchant Company Endowments (Amendment) Order 1942;

“will” means the mutual trust disposition and settlement of Richard Waterston Gibb and Mrs. Jane Lee Heriot or Gibb dated the fourteenth day of June eighteen hundred and ninety-five and registered in the Books of Council and Session the eighteenth day of April one thousand nine hundred.

Repeal.

4. After the commencement of this Order sections 65 to 73 both inclusive section 92 (so far as relating to the Charities Board and to James Gillespie's Hospital and to William Watherston's Endowment) subsection (2) of section 94 and subsection (2) of section 95 of the Order of 1909 and the Order of 1942 shall without prejudice to anything done or suffered under the said Orders be repealed and the following provisions shall apply in lieu thereof and of the will so far as inconsistent with the provisions of this Order.

Amalgamation
of charitable
endowments.

5. The charitable endowments shall on the commencement of this Order be and are hereby amalgamated and shall after the commencement of this Order be held and administered by the Charities Board in accordance with the provisions of this Order as one fund which shall be called “the charitable fund”.

Application of
income.

6. Subject to the provisions of this Order the free income of the charitable fund shall after meeting the expenses of management be applied in the payment of annual pensions or gifts of money and in providing lodging clothing food fuel furnishings or other benefits to persons who are decent godly industrious peaceable sober men and women in indigent circumstances and who are qualified as hereinafter mentioned in this Order to receive such benefits.

Classes of
beneficiaries.

7. The classes of persons qualified to be beneficiaries shall be—

- (1) members of the Merchant Company not exceeding at one time ten in number who shall rank preferably on the funds of the charitable fund;
- (2) persons belonging to the city of Edinburgh who shall rank secondly on the funds of the charitable fund;
- (3) persons belonging to the county of Midlothian generally (excepting the city of Edinburgh) who shall rank thirdly on the funds of the charitable fund:

Provided that in classes (2) and (3) preference shall be given to persons of the name of Gillespie Gibb or Heriot and to those who have been connected with the building trade in the city of Edinburgh.

Age of
beneficiaries.

8. All beneficiaries shall be at least fifty-five years of age on the first day of July in the year of election unless they are certified on medical grounds to be unable to earn their living.

Minimum
amount and
tenure of
pensions.

9. Each pension from the charitable fund shall be not less than ten pounds per annum and shall be payable in advance at such times as the Charities Board may decide and that during the pleasure of the Charities Board either to the beneficiary or such other person as the Charities Board may from time to time determine to be applied for behoof of the beneficiary.

10.—(1) The Charities Board may build purchase lease alter and maintain and may fit up and furnish wholly or partly houses flats or other buildings for the accommodation of beneficiaries and may allow such beneficiaries in lieu of or in addition to the payment of pension in money or other benefit to occupy such houses flats or other buildings during the pleasure of the Charities Board.

Power to
Charities Board
to provide
houses etc. for
beneficiaries.

(2) The Charities Board may employ such persons as the Charities Board may consider necessary to assist and advise the beneficiaries.

(3) The Charities Board may defray all expenditure incurred by them in the exercise of the powers conferred on them by this section out of the charitable fund and may also apply to the building or purchase of houses flats or other buildings for the accommodation of beneficiaries or for any purpose connected therewith to which capital is properly applicable any money borrowed by them under the powers vested in them.

11. The Charities Board may in lieu of or in addition to the payment of pensions in money provide beneficiaries with clothing food fuel furnishings or other benefits and such provision may either be by way of gift loan or on partial or full repayment and the Charities Board may defray all expenditure incurred by them in the exercise of the powers conferred on them by this section out of the charitable fund.

Power to
Charities Board
to provide
beneficiaries with
clothing etc.

12.—(1) The Charities Board shall annually on a date or dates to be fixed by them elect the number of beneficiaries for which in the opinion of the Charities Board the free income of the charitable fund will provide and shall determine the benefits which each beneficiary may receive during the ensuing year or such shorter period as the Charities Board may determine.

Election of
beneficiaries.

(2) Beneficiaries shall be designated Gillespie Pensioners or Watherston Donees or Gibb and Heriot Pensioners as the Charities Board may decide when the beneficiary is elected.

13.—(1) The Charities Board shall on application issue to each applicant for a pension or other benefit a form of application with a schedule appended containing particulars of the information certificates and documents required in support of the application.

Applications for
pensions etc.

(2) Every application shall be made on the form so supplied and shall be lodged with the Charities Board along with the required documents.

14. In addition to the powers of investment contained in section 90 (Investments of funds) of the Order of 1909 the Charities Board may invest any moneys belonging to or held by them and forming part of the charitable fund in any of the following investments securities and obligations:—

Powers of
investment.

(1) In or upon the public stocks or funds or Government securities of any part of Her Majesty's dominions or of the territories under Her protection or the United States of America ;

(2) In or upon the deposit receipts bonds debentures debenture stock mortgages or securities of any corporation company

or body whether municipal railway public utility commercial industrial investment trust mortgage insurance banking or otherwise registered or incorporated in the United Kingdom of Great Britain and Northern Ireland or any part of Her Majesty's dominions or of the territories under Her protection or the United States of America or in or upon the guaranteed lien preference or preferred or ordinary or deferred or common stocks or shares of any such corporation company or body or upon any securities whatsoever issued or guaranteed by any such corporation company or body and in the case of banks and insurance companies whether or not there is liability for calls or other payments.

Power to create
reserve fund.

15.—(1) The Charities Board may create and maintain a reserve fund not exceeding twenty thousand pounds from the charitable fund by setting aside out of the revenue of the charitable fund such sums as the Charities Board may think fit.

(2) There shall be transferred to any reserve fund created under the provisions of this section the reserve funds created by the Charities Board in respect of James Gillespie's Hospital William Watherston's Endowment and the Gibb and Heriot Mortification respectively as existing at the commencement of this Order.

(3) The reserve fund created under the powers of this section shall be applied by the Charities Board in such way and manner as they deem expedient for the benefit of the charitable fund and inter alia towards meeting—

- (a) the excess of expenditure over revenue of the charitable fund occurring at the close of any financial year as the same may be ascertained and fixed by a certificate under the hand of the accountant-auditor of the Charities Board for the time being ;
- (b) the losses which may be sustained by the charitable fund through the depreciation of securities or insolvency of debtors ;
- (c) extraordinary expenditure on lands buildings and appliances forming part of the charitable fund.

Accounts to be
kept.

16.—(1) The Charities Board shall keep a full account of the charitable fund showing the sums of money received and expended and the assets and liabilities thereof.

(2) A duly qualified accountant shall annually as at a date to be fixed by the Charities Board audit the account referred to in subsection (1) of this section and report thereon to the Charities Board.

(3) For the purposes of this section a person shall not be deemed to be a duly qualified accountant unless he is a member of one or more of the following bodies:—

The Institute of Chartered Accountants of Scotland.

The Institute of Chartered Accountants in England and Wales.

The Society of Incorporated Accountants and Auditors.

The Association of Certified and Corporate Accountants.

The Institute of Chartered Accountants in Ireland.

Any other body of accountants established in the United Kingdom and for the time being recognised by the Board of Trade for the purposes of the provisions of section 161 of the Companies Act 1948 relating to the qualification for appointment as auditor of a company other than an exempt private company.

17. The Charities Board may grant to their officers and other employees such pensions or retiring allowances as they may deem proper or join with the Merchant Company or any institution connected therewith for the purpose of contributing to a superannuation fund for such officers and employees or make payment to an insurance company for a like purpose. Pensions etc.
to officers and
employees.

18. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning (Scotland) Act 1947 for the purposes of subsection (4) of section 11 and subsection (1) of section 112 of that Act. Saving for town
and country
planning.

19. All costs charges and expenses of and incident to the preparing obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Charities Board out of the revenue of the charitable fund. Costs of Order.

Table of Statutes referred to in this Act

Short title	Session and chapter
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5. & 1 Edw. 8. c. 52.
Town and Country Planning (Scotland) Act 1947	10 & 11 Geo. 6. c. 53.
Companies Act 1948 	11 & 12 Geo. 6. c. 38.

PRINTED BY HENRY GEORGE GORDON WELCH, C.B.E.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

Ch. ii

*Edinburgh Merchant Company
Endowments (Amendment) Order
Confirmation Act, 1952*

15 & 16 Geo. 6
& 1 ELIZ. 2

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 9d. net

PRINTED IN GREAT BRITAIN

(77192)